

Kifissias Avenue 1-3, 11523 Athens
T: 210 6475 600 • E: contact@dpa.gr • www.dpa.gr

Athens, 23-01-2025

Ref. No.: 320

DECISION 6/2025

The Hellenic Data Protection Authority convened at the invitation of its President via teleconference on Tuesday, July 30, 2024, in order to examine the case referred to below in the background of this decision. Present were the President of the Authority, Konstantinos Menoudakos, the regular members of the Authority Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, Grigorios Tsolias, Aikaterini Iliadou, Christos Kalloniatis as rapporteur, and the alternate member Nikolaos Libos in place of the regular member Charalambos Anthopoulos, who, although duly summoned in writing, did not attend due to an impediment. Present without voting rights were Aikaterini Chatzidiakou, IT auditor, as assistant rapporteur, and Irini Papageorgopoulou, employee of the Administrative Affairs Department, as secretary. The Authority took into account the following:

With complaint no. G/EIS/2500/12-04-2021, A and B brought before the Authority, among other things, the following: The complained party C, who resides in the ground floor of a duplex in which the complainants also live, has installed cameras, one of which is located under the balcony of the complainants with whom he is a co-owner (in undivided share) of the said property. The aforementioned cameras, as claimed by the complainants, capture image and sound and are connected to a recording device. Furthermore, the field of view of the cameras includes areas such as the shared main entrance of the building's stairwell, the pilotis of the building, and the garden of the property, while the purpose of the processing appears to be the protection of persons and property of the residence. They further argued that the system has specific technical characteristics, from which it appears that it operates in violation of the GDPR, as it captures images from a non-domestic space of the complained party, while none of the conditions of Directive 1/2011 of the Authority are met. Finally, they claimed that a right of objection had been exercised against the complained party without response.

The Authority, after summoning the parties involved for a hearing before the Department of the Authority on Wednesday, December 7, 2021, and subsequently deliberating, issued Decision 10/20221.

Specifically, the Authority, taking into account the nature and purpose of the processing, the long-standing disagreement between the two parties, their familial relationship, and the fact that the processing may have consequences for specific few natural persons, with its Decision no. 10/2022, exercised its corrective power under Article 58(2)(f) of the GDPR and imposed on the complained party a prohibition on the processing of personal data through a video surveillance system that captures images from common areas of the property where his family and the complainants reside, and the obligation to inform the Authority in writing about the implementation of the decision within one week from the receipt of the Decision.

Subsequently, with letter no. G/EIS/3058/02-03-2022, the complained party C informed the Authority that he had ceased the processing of personal data through a video surveillance system, in accordance with the Authority's Decision 10/2022, with all rights reserved, while with letter no. G/EXE/683/15-03-2022 from the Authority, the complainants were also informed about the cessation of processing.

Following this, the complainant A submitted against the aforementioned Decision no. 10/2022, the present application with reference no. G/EIS/464/23-01-2023 (remedy), requesting the modification of the Decision, claiming, among other things, that with Decision no. 10/2022, the Authority did not proceed, according to the claims of the applicant, to the necessary imposition of "dismantling-removal" of the video-audio surveillance system (3 video-audio surveillance cameras and other equipment with motion detection radar, wiring, etc.) for the already established violation of Article 15 of Directive

1/2011 of the Authority, nor to the imposition of an administrative fine for the case of non-compliance.

1 <https://www.dpa.gr/el/enimerwtiko/prakseisArxis/apagoreysi-epexergasias-prosopikon-dedomenon-meso-systimatos>

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Compliance with the "uninstallation-removal" order.

In the above-mentioned application for remedy, the applicant claims, among other things, that the effectiveness of the contested Decision is not ensured if it does not include the "uninstallation-removal" of the system and therefore a re-examination and "supplementation" of Decision No. 10/2022 is required, for reasons of application of the principle of equal treatment and adherence to the principle of proportionality.

The Authority, following a meeting in a Department formation on Wednesday, February 15, 2023, found the issuance of contradictory decisions by the Single-Member body and the Department of the Authority regarding the same legal issue, namely the Authority's jurisdiction to order only a prohibition of processing through a video surveillance system. Consequently, and in accordance with Articles 8 par. 1(b) and 4 par. 1(i) of the Authority's Operating Regulation (Government Gazette B' 879), it decided, with Decision 8/20232, to refer the above application for remedy for examination before the Plenary of the Authority, due to its importance and general interest.

The Authority, following a meeting in Plenary formation on Tuesday, March 14, 2023, accepted the application for remedy of the complainant. With its Decision No. 19/20233, the Authority exercised its corrective power under Article 58 par. 2(i) of the GDPR and ordered the uninstallation of the devices of the video surveillance system whose range covers the common areas of the property where the complainant, his family, and the applicant reside, within fifteen (15) days from the issuance of the Decision, and to inform the Authority in writing about the implementation of this. The Decision was communicated with documents No. G/EXE/1135/04-05-2023 and G/EXE/2894/15-11-2023 from the Authority to the complainant and the complained party.

Subsequently, the complained party, by sending document No. G/IN/8798/11-12-2023 "request for revocation," requested the revocation of Decision No. 19/2023 issued in the case. In summary, the complained party in the above request claims the following:

a) the complainant has not submitted any evidence that substantiates recording or automation of any type by the video surveillance system and therefore this should not be adopted by the Authority as a criterion for its judgment,

b) regarding the issue of the required majority of tenants in the apartment building for the installation of the video surveillance system, he maintains his initial position, which he had presented before the Authority during the examination process of the above complaint, in which he argued that for the controversial installation, the majority of 2/3 had been formed according to the Authority's Directive,

c) his action falls within the framework of exercising activities exclusively for personal or household use, as in this specific case, according to his initial position, the supervision does not differ materially from the supervision of the space through an optical lens used in the "peephole,"

d) the installation of the video surveillance system is done as a minimally necessary measure to achieve the intended purpose, namely the protection of life and property, as the complained party has already been a victim of theft twice. Furthermore, he claims that the principle of proportionality is not violated, as the video surveillance system does not have a recording device and therefore the entry control is conducted in real-time without further recording.

The complainant, with documents No. G/IN/1078/12-02-2024, G/IN/1468/23-02-2024, G/IN/1591/28-02-2024, G/IN/2542/19-03-2024, G/IN/2903/28-03-2024, G/IN/4880/05-06-2024, G/IN/4881/05-06-2024, and G/IN/4899/05-06-2024 sent to the Authority, states that Decision No. 19/2023 issued by the Authority has not yet been implemented by the complained party.

The Authority, taking into account on the one hand the fact that the case initiated with complaint No. G/IN/2500/12-04-2021 for which Decision No. 19/2023 of the Authority has been issued and for which the complained party had been informed with documents No. G/EXE/1135/04-05-2023 and

G/EXE/2894/15-11-2023 from the Authority and for which he had expressed his views with the G/IN/8798/11-12-2023 (from 11/12/2023) email to the Authority, and on the other hand the non-compliance of the complained party with Decision 19/2023 of the Authority and generally his cooperation with the Authority, summoned the involved parties to a hearing before the Plenary of the Authority on Tuesday, July 30, 2024, of which the complained party and the applicant did not attend. During the summons, the complainant reiterated the aforementioned claims and stated that the complained party continues to not proceed with the removal-uninstallation of the said system.

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video surveillance system. Since no deadline was requested for the submission of a memorandum, the Authority, after examining the application, having heard the rapporteur and the remarks of the assistant rapporteur, who was present without voting rights, following a thorough discussion,

THOUGHT ACCORDING TO THE LAW

1. Because, according to Article 24 paragraph 1 of Law 2690/1999 (Administrative Procedure Code), "If the relevant provisions do not provide for the possibility of exercising the special administrative or administrative appeal as per the next article, the interested party, for the restoration of material or moral damage to their legal interests caused by an individual administrative act, may, for any reason, submit a request either to the administrative authority that issued the act for its revocation or modification (request for remedy), or to the authority that oversees the one that issued the act for its annulment (hierarchical appeal)." According to the meaning of the provision, the request for remedy aims at the revocation or modification of the contested individual administrative act for legal or factual defects that relate to the regime under which it was issued.

2. Because, with the above provisions of Article 24 of the Administrative Procedure Code, a right is established for every "interested" governed individual who has suffered material or moral damage from an individual administrative act to address the authority that issued the said act before resorting to judicial protection (simple administrative appeal, otherwise request for remedy). This is an "informal" administrative appeal in contrast to the formal "special" and "administrative" appeals of Article 25 of the Administrative Procedure Code. With the application numbered G/EIS/8798/11-12-2023 of the complainant, which has the character of a request for remedy, the revocation of the aforementioned decision numbered 19/2023 of the Authority is requested, in order to restore the material or moral damage caused to the applicant by this decision.

3. Because the claims made in the request for remedy are not based on the invocation of new and critical factual elements for the case, from the assessment of which a different conclusion could arise, but with this request, the correctness of the assessment of the facts of the case and the Authority's judgment in the interpretation and application of the relevant provisions of the GDPR is simply challenged. Consequently, there is no case for reconsideration of the case for the purpose of revocation or modification of the Authority's decision numbered 19/2023, and therefore, the said request of the complainant is to be rejected.

4. Because, in light of the examined request, it is necessary to examine, under Articles 57 paragraph 1 subparagraphs a and h of the GDPR and 13 paragraph 1 subparagraph h of Law 4624/2019, the compliance of the complainant with the decision 19/2023 of the Authority, following the aforementioned relevant documents of the complainant, as well as their overall cooperation with the Authority. Specifically, from their latest document (G/EIS/8798/11-12-2023), it appears that the complainant did not cease processing in compliance with the order issued by the Authority with its previous decision, contrary to what is stated in their document numbered G/EIS/3058/02-03-2022, in violation of the provisions of Article 83 paragraph 5 subparagraph e. Furthermore, the complainant did not cooperate with the Authority, as evidenced by their failure to respond to the Authority's documents (G/EKSE/1135/04-05-2023, G/EKSE/2894/15-11-2023, G/EIS/8281/21-11-2023, and G/EIS/8529/01-12-2023) after the issuance of the decision numbered 19/2023 and the difficulties in communication with them, despite repeated attempts. In fact, despite the service of the summons numbered G/EKSE/1880/15-07-2024, the complainant did not attend the Authority's meeting nor did they send a related document, memorandum, or relevant update. Therefore, from the above behavior of the complainant responsible for processing, it is evident that there is a violation of their obligation to

cooperate with the supervisory authority for the exercise of its duties, as required by Article 31 of the GDPR.

5. Because, moreover, in this specific case, it appears that the complainant, as the responsible processor, continued processing without implementing the decision 19/2023 of the Authority for the removal of the violation identified by this decision.

6. Because, in this case, regarding the above two identified violations of Articles 83 paragraph 5 subparagraph e and 31 of the GDPR, respectively, the Authority considers that there is a case to exercise its corrective powers under Article 58 paragraph 2 of the GDPR. Specifically, the Authority, taking into account that the processing carried out through the video surveillance system continues to exist, deems it necessary to issue the same order to the complainant responsible for processing as the one it addressed in decision number.

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In its decision 19/2023, pursuant to Article 58(2)(h) of the GDPR, the Authority further finds that the imposition of the aforementioned corrective measure is insufficient to restore compliance with the above obligations of the GDPR that have been violated and that, based on the circumstances identified, an effective, proportionate, and deterrent administrative monetary fine must be imposed, in accordance with the provision of Article 58(2)(h) of the GDPR, and Article 83 of the GDPR. In evaluating the data in order to select the appropriate corrective measure to restore compliance, the Authority, taking into account the guidelines 4/2022 of the EDPB for the calculation of administrative fines and the Guidelines "on the application and determination of administrative fines for the purposes of Regulation 2016/679" of the Article 29 Working Party, considering that the respondent data controller is a natural person and that the activity, although not exclusively domestic, relates to the protection of his home, takes into account the following:

- That the severity of the identified violations is assessed as minor, taking into account the fact that a substantially small number of individuals are affected, who are relatives and with whom there is a long-standing disagreement (Article 83(2)(a)).
- That a related previous violation by the data controller continues to exist (Article 83(2)(e)).
- That the respondent did not implement the corrective measures taken in a previous decision of the Authority as he was obliged to comply with that decision (Article 83(2)(h)).
- That the data controller had been fully informed about the existing regulatory framework, while he had misleadingly responded to the Authority, but on the contrary, did not cooperate with the Authority to rectify the violation and limit its consequences (Article 83(2)(f)).

4 Guidelines 04/2022 on the calculation of administrative fines under the GDPR from 12.05.2022 under public consultation, available at the link https://edpb.europa.eu/system/files/2022-05/edpb_guidelines_042022_calculationofadministrativefines_en.pdf

5 WP 253 from 03.10.2017 available at the link https://www.dpa.gr/sites/default/files/2019-12/wp253_el.pdf

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FOR THESE REASONS

The Authority, taking into account the above:

- a) Rejects the application for remedy under consideration.
- b) Imposes based on Article 58(2)(h) of the GDPR, an administrative fine on the respondent in the total amount of 3,000 euros for the fact that the data controller continued processing without implementing the decision 19/2023 of the Authority for the removal of the violation identified by this decision.
- c) Imposes based on Article 58(2)(h) of the GDPR, an administrative fine on the respondent in the total amount of 2,000 euros for the violation of the independent obligation to cooperate with the Authority under Article 31 of Regulation (EU) 2016/679.
- d) Orders based on Article 58(2)(h) of the GDPR the data controller to uninstall the video surveillance devices whose range covers the common areas of the property where he resides, along with his family and the applicant, within fifteen (15) days from the issuance of this decision, and to inform the Authority in writing about the implementation of this decision.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou